

STATE OF OKLAHOMA

2nd Session of the 60th Legislature (2026)

HOUSE BILL 3917

By: Dollens

AS INTRODUCED

An Act relating to public utilities; defining terms; requiring certain public utilities to make certain filing with the Oklahoma Corporation Commission; requiring public utility filing include surcharge for certain customers; requiring transfer and deposit of certain funds; authorizing the promulgation of rules; creating the Grid Modernization Revolving Fund; stating type and purpose of fund; authorizing certain expenditures; providing for codification; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 180.14 of Title 17, unless there is created a duplication in numbering, reads as follows:

A. As used in this act:

1. "Public utility" shall have the same meaning as it is defined in Section 151 of Title 17 of the Oklahoma Statutes; and

2. "Large load data center" means a facility that:

- a. primarily stores, manages, and processes digital data,
- b. is used to house computer and network systems,
including associated components such as servers,

1 network equipment and appliances, telecommunications,
2 and data storage systems, systems for monitoring and
3 managing infrastructure performance, Internet-related
4 equipment and services, data communications
5 connections, environmental controls, fire protection
6 systems, and security systems and services, and

7 c. has, or is projected to have, a monthly demand of at
8 least fifty (50) megawatts.

9 B. A public utility that provides electric services to large
10 load data center customers shall file with the Oklahoma Corporation
11 Commission an updated schedule of tariffs for approval, which
12 schedule shall include a surcharge for large load data center
13 customers to be applied during periods of peak demand on the
14 electrical grid.

15 C. A public utility shall transfer to the Corporation
16 Commission all monies collected from the surcharge established
17 pursuant to subsection B of this section, which monies shall be
18 deposited by the Commission into the "Grid Modernization Revolving
19 Fund" created in Section 2 of this act.

20 D. The Corporation Commission is authorized to promulgate rules
21 to effectuate the provisions of this section.

22 SECTION 2. NEW LAW A new section of law to be codified
23 in the Oklahoma Statutes as Section 180.15 of Title 17, unless there
24 is created a duplication in numbering, reads as follows:

1 There is hereby created in the State Treasury a revolving fund
2 for the Oklahoma Corporation Commission to be designated the "Grid
3 Modernization Revolving Fund". The fund shall be a continuing fund,
4 not subject to fiscal year limitations, and shall consist of all
5 monies received by the Corporation Commission from the surcharge
6 collected by public utilities pursuant to Section 1 of this act.
7 All monies accruing to the credit of said fund are hereby
8 appropriated and may be budgeted and expended by the Commission for
9 the purpose of modernizing the state's electric grid. Expenditures
10 from said fund shall be made upon warrants issued by the State
11 Treasurer against claims filed as prescribed by law with the
12 Director of the Office of Management and Enterprise Services for
13 approval and payment.

14 SECTION 3. This act shall become effective November 1, 2026.

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